

RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk

June 27, 2011

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Absent: Mr. Allen. Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mayor Kaysen announced agenda item #17 was inadvertently placed on the Consent Agenda during preparation of the agenda, and, therefore, it was being removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #20 was removed from the Consent Agenda. Upon request by Ms. Ash, and pursuant to support received by Mr. Collins and Mr. Brown, agenda item #16 was removed from the Consent Agenda. Mr. Spiker moved to approve remaining Consent Agenda items, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on June 13, 2011. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Session Meeting of the Governing Body on June 20, 2011. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Collins each declared a conflict of interest (business interest) due to vouchers payable to Ameri-Tech HVAC Services and the Bicycle Station respectively, and vacated Council Chambers. Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Spiker. Motion carried. Voting "yes" -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Collins returned to Council Chambers.

Mayor Kaysen opened a public hearing to receive input and comments on a restaurant liquor license application filed with the City Clerk's Office for Capiro Ambriento, LLC d/b/a Capiro Ambriento, 3617 E. Lincolnway, Cheyenne, Wyoming. Comments were made welcoming the owners of the new restaurant to the community. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing. The item was referred to Finance Committee.

Mayor Kaysen opened a public hearing to receive input and comments on a restaurant liquor license application filed with the City Clerk's Office for Morris House Enterprises, Inc. d/b/a Morris House Bistro, 2114 Warren Avenue, Cheyenne, Wyoming. Dameione Cameron, applicant, reviewed the history of the restaurant's location, explaining it is the former Esther Hobart Morris house, and provided information on restaurant hours and menu items involving southern country cuisine. There being no further comments and purpose of the hearing having been met, Mayor Kaysen closed the hearing. The item was referred to Finance Committee.

Ordinance amending the City of Cheyenne's Sanitation Fee Schedule. Reporting for Finance Committee, Mr. Valdez stated there was no recommendation on the item from the Committee. Mr. Brown moved to approve on third and final reading, seconded by Mr. Collins. Mr. Brown moved to amend by substitute, seconded by Mr. Collins. Upon inquiry, Jim Elias, Public Works Director, advised the substitute removes the proposed 3.2% increase in commercial and residential solid waste collection fees, and combines the residential automated collection and recycle services into one fee with the rates remaining the same. He also reviewed various areas included in the substitute, including roll-off container overweight/overload fees; transfer station fees for drop-off recyclable items; commercial and residential recycling and yard waste container fees; reduced rates at the landfill for commercial clean load recyclable materials, charges per ton for unsecured loads at the landfill, and elimination of free pickup of bags left outside of containers. Frank Cole, developer, reviewed a past circumstance involving inconsistency in assessment of fees for an unsecured load. Upon inquiry, Mr. Elias confirmed the substitute eliminates the proposed 3.2% increase in fees, and provided information on fees related to recyclables brought to the transfer station, secured loads, notification procedures, unloading cardboard containers, yard waste container retrieval and cleaning fees, and staff services and costs. Comments followed on the proposed substitute. Motion to amend carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no". Concern was raised on assessing a fee for dropping off recyclable items at the transfer station. Main motion as amended by substitute carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne and Mr. Valdez voting "no." (#3924) Mayor Kaysen advised the sanitation fee schedule will be posted on the City's website.

Ordinance approving and establishing revised water rates, sewer rates, tap fees, system development fees, administrative fees, service charges and penalties and septic and commercial dump rates, as recommended by the Board of Public Utilities. Charlie Giroux expressed appreciation to City Council for its consideration in not increasing rates. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Brown. Mr. Valdez moved to amend by removing Section 4, and related Exhibit A, involving water rates, and re-numbering remaining sections, seconded by Mr. Brown. Upon inquiry regarding the Board of Public Utilities' review of watering restrictions and possible revision to the restrictions which could potentially generate revenue through additional water sales, Clint Bassett, BOPU Water Conservation Specialist, advised the Board has requested a recommendation be provided from the Water Conservation Committee. He stated the Committee would be meeting at noon on Thurs., June 30, at the Laramie County Library Windflower Room. It was confirmed the amendment removes proposed fee increases to water rates with proposed sewer rates remaining intact. Motion to amend carried. Voting "yes" -- Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Dr. Rinne and Mayor Kaysen. Voting "no" -- Mr. Pierson, Mr. Spiker and Mr. Valdez. Main motion as amended failed. Voting "yes" -- Mr. Brown,

Ms. Broyles, Mr. Collins, Dr. Rinne and Mayor Kaysen. Voting “no” -- Ms. Ash, Mr. Pierson, Mr. Spiker and Mr. Valdez voting “no”. [Clerk’s note: Main motion for an ordinance on third and final reading requires six affirmative votes to pass.]

Ordinance amending Ordinance No. 3897 defining the terms and conditions of employment for non-uniformed employees of the City of Cheyenne. Mr. Valdez moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Ms. Ash voting “no”. (#3925)

Ordinance amending Ordinance No. 3898 defining the terms and conditions of employment for sworn officers of the Cheyenne Police Department. Mr. Valdez moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” -- all members of the governing body present with Ms. Ash voting “no”. (#3926)

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lots 1 & 2, Block 1; Lots 1 & 2, Block 2; Lots 3 & 4, 6-10, Block 3; and Lots 1-7, Block 4, Campstool Addition, Third Filing, Cheyenne, Wyoming (located south of and adjacent to Venture Drive, east of Campstool Road). Reporting for Public Services Committee, Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Upon inquiry regarding past re-zoning actions involving the property, Jim Flesher, Planning/Development office, provided information on uses allowed, some involving board approval, under CB and LI zone designations. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”.

Ordinance amending Title 17, Zoning, Chapter 17.08, Zoning Districts Established and Section 17.08.040 Cheyenne City Map of the Cheyenne City Code, by changing the zoning classification from CB Community Business District to LI Light Industrial District for Lot 1, Block 1, Hutchins Corner, 2nd Filing, Cheyenne, Wyoming (located at the southwest corner at the curve of Hutchins Drive, south of Campstool Road). Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Upon inquiry regarding allowable building designs in a LI zone, Jim Flesher, Planning/Development office, advised if the zone change was approved current criteria for an LI zone would apply. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne voting “no”.

Ordinance creating Section 17.116.155, Special Use Permit: Oil and Gas Support Services, of Chapter 17.116, Design and Use Standards Generally, of Title 17, Zoning, of the Cheyenne City Code. Mr. Collins moved to approve on second reading, seconded by Ms. Ash. Mr. Collins moved to amend Section E. 4. by changing 18 months to 12 months and by removing the sentence “Any application that has not established the Special Use within 1 year shall be void,” seconded by Ms. Broyles. Brad Emmons, AVI, commented that a longer term (i.e. 18 months) should be considered due to the lengthy time frame involving an applicant’s site plan process. Donald James Perot McNeil suggested the governing body carefully consider the permit process for correctness. Upon inquiry, Matt Ashby, Planning Services Director, explained the amendment would provide for the application to be valid for up to 12 months with the ability to seek a 6 month extension, and John

Knepper, Assistant City Attorney, provided information regarding permit time frame, extension period and permit approval process. Discussion followed on the permit time frame and permit application process. Motion to amend failed. Voting "no" -- all members of the governing body present. Upon inquiry regarding outside storage and screening of adjacent public rights-of-way contained in Section B. 3. of the ordinance, Mr. Ashby provided information on what types of areas would be involved in screening requirements; definition of oil and gas services; building permits; code enforcement; site plan public notification requirements; landscaping, and what might constitute "sufficient height" relative to screening requirements and certain types of equipment or supplies. In response to inquiry pertaining to a specific site that may involve oil and gas support services, Mr. Ashby stated he was not aware of any discussion regarding placement of a helicopter pad. Upon inquiry, Mayor Kaysen advised oil supply companies and contacts from local developers and landowners, principally in the eastern Cheyenne area, had requested the ordinance. Upon inquiry, Dan White, City Attorney, advised he was not aware of any exceptions in nuisance ordinances involving certain effects, such as odors, particulate matters, etc., and indicated if some unusual activity occurs, it could be determined to be a nuisance. Mr. Ashby further clarified uses emitting noise and light pollution would require special board of adjustment approval and a hearing process pursuant to the zoning code. Comments included concern with undesirable aesthetic conditions such as possible junk vehicles, tires, and cleanliness of the property, and support for oil and gas activities. Ms. Ash moved to amend Section B. 4. to provide for a revised definition of maintenance to read "Maintenance is defined as any activity related to upkeep of vehicles or equipment that has a potential of causing the discharge of chemicals, lubricants, or other hazardous substances onto the ground," seconded by Mr. Collins, as referenced in Mr. Ashby's memo dated June 27, 2011. Mr. McNeil cautioned the governing body to make good amendments, and expressed his concern with the fracking process. Upon request, Carol Intlekofer, City Clerk, reiterated the wording of the pending motion to amend. Motion to amend carried. Voting "yes" -- all members of the governing body present. Pursuant to inquiry regarding wording contained in the ordinance relative to restrooms, Mr. Ashby advised he would further review the topic. Concern was raised regarding the height of screening and buffering requirements, particularly due to topography conditions. Main motion as amended carried. Voting "yes" -- all members of the governing body present with the exception of Dr. Rinne voting "no".

Resolution re-appropriating the fiscal year 2011 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Mr. Valdez moved to adopt, seconded by Mr. Brown. Upon inquiry regarding designated general fund reserves involving the TIF (Downtown Development Authority Tax Increment Funds), Barb Dorr, City Treasurer, advised the exact amount of rollover budget amounts would not be known until the year-end closes and adjustments have been made, and that in either case, whether the payment was made from revenues or reserves, re-appropriation of the budget would have to be done. Motion carried. Voting "yes" -- all members of the governing body present. (#5287)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Cahill Park Addition, a replat of Windmill Road, Second Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of Dell Range Boulevard and Windmill Road). Charlie Giroux suggested leaving the parcel as park land, and Donald James Perot McNeil spoke in opposition to selling City land. Mr. Collins moved to adopt, seconded by Ms. Ash. Comments followed on the purpose of the

resolution, which will align streets, and concern with sale of the property. Motion carried. Voting “yes” -- all members of the governing body present with the exception of Dr. Rinne and Mr. Valdez voting “no”. (#5288)

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Niobrara Energy Park, a replat of a portion of Tracts 6, 17 and 18, Clear View Tracts, and a portion of the N½ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of S. College Drive (behind Lighthouse Baptist Church), north of Laramie County Community College). Donald James Perot McNeil expressed concern with safe storage of products in close proximity to a school and businesses. Mr. Collins moved to adopt, seconded by Ms. Ash. Mr. Collins moved to postpone for two weeks (to July 11, 2011), seconded by Ms. Ash. It was advised the developer had requested a postponement to work on a development agreement between the City and County. Motion to postpone carried. Voting “yes” -- all members of the governing body present.

Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for Overland Trails Business Park, being portions of Sections 14 and 23, T.13N., R.67W., 6th P.M., Laramie County, Wyoming (located west of and adjacent to I-25, south of W. College Drive). Mr. Collins moved to adopt with staff recommendations #1 through 10, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present. (#5289)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Cheyenne Light, Fuel and Power East Cheyenne Business Park Substation, situated in a portion of the SW¼ of Section 29, T.14N., R.65W., 6th P.M., Cheyenne, Wyoming (located approximately one-quarter mile north of Venture Drive, approximately one-half mile west of the intersection of East Pershing Boulevard and I-80). Mayor Kaysen declared a conflict of interest (family affiliated financial interest); relinquished duties of the chair to Council President Rinne, and vacated Council Chambers. Mr. Collins moved to adopt, seconded by Ms. Ash. Upon inquiry regarding use of community facilities fees pursuant to City Code Section 17.136.090 which allows for a per tree monetary donation for reduction of the required number of trees affiliated with a site plan, Rick Parish, Director, Parks and Recreation Department, explained the City Code section allows for a monetary donation to be made when a tree reduction (landscape variance) is approved. He stated the monetary donation will go into a fund for trees in other areas, noting the department’s intent is to plant trees in east Cheyenne park areas and South Community Park, and advised the applicant has no objection to the funding being used for those areas. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mayor Kaysen returned to Council Chambers and Council President Rinne returned duties of the chair to Mayor Kaysen. (#5290)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Union Telephone Company and D's 4 Wheel Drive Subdivision, a replat of a portion of Lots 21 and 22, Block 420; a portion of Lots 12-18, Block 421 and a portion of House Avenue, Original City, Cheyenne, Wyoming (located at the northeast corner of the intersection of E. 15th Street and House Avenue). Mr. Collins moved to adopt with staff recommendations #1 through 5, seconded by Ms. Ash. Mr. Collins moved to amend by adding staff recommendation #6 which reads “Require an easement for the existing water main”, seconded by Ms. Ash. Motion to amend carried. Voting “yes” -- all

members of the governing body present. Main motion as amended carried. Voting “yes” -- all members of the governing body present. (#5291)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, Second Filing, a replat of Lots 21-24, Block 11, Saddle Ridge Subdivision, Cheyenne, Wyoming (located at the northwest corner of the intersection of Wilderness Trail and Gunsmoke Road). Motion (per Consent Agenda) carried. (#5292)

[CA] Resolution supporting the City of Cheyenne’s application for Transportation Enhancement Activities - Local (TEAL) funds for continuation of the Greenway System; specifically, the Holliday Park Connector Project. Motion (per Consent Agenda) carried. (#5293)

[CA] Resolution certifying that the Governing Body of the City of Cheyenne approves of the County Projects to be submitted to the State Loan and Investment Board for the 2011 Countywide Consensus Block Grant funding. Motion (per Consent Agenda) carried. (#5294)

[CA] Resolution approving Outside User Water/Sewer Services Agreement with Granite Peak Properties, LLC, Lot 1, Block 1, Swan Ranch Rail Park, Third Filing, Laramie County, Wyoming -- referred to Finance Committee (sponsors - Mr. Pierson and Mr. Valdez).

[CA] Resolution approving Outside User Sanitary Sewer Services Agreement with Marvin Strubhar, 3408 Victoria Drive, Cheyenne, Wyoming” -- referred to Finance Committee (sponsors - Mr. Pierson and Mr. Valdez).

[CA] County Preliminary Plat of Country Homes Subdivision, 2nd Filing, a replat of Lots 7 and 8, Block 3; Lots 2-7, Block 4; Lots 1-3 and 6-8, Block 5; and Lots 1, 2, 7 and 8, Block 6, Country Homes Subdivision, Laramie County, Wyoming (located north of and adjacent to Citrus Street, between Division and Pine Avenues). Motion (per Consent Agenda) carried.

County Preliminary Plat for C.W. Subdivision, a replat of Tracts 6, 14 and 16-18, Clear View Tracts; and a portion of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of and adjacent to E. Fox Farm Road, between Avenue C-2 and S. College Drive). Mr. Collins moved to acknowledge receipt with staff recommendations #1, 2, 5, 6 and 7, seconded by Ms. Ash. Motion carried. Voting “yes” -- all members of the governing body present.

[CA] Agreement between the City of Cheyenne and Bill G. Hibbler for Professional Legal Counsel for various services and representation. Motion (per Consent Agenda) carried. (#5703)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Control Services -- referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Ayres Associates to

develop the Snyder Avenue storm sewer upgrade design (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-31-11 for the surplus sale of two WANCO Message Boards for the City of Cheyenne Engineering Department. Motion (per Consent Agenda) carried (accept bid of S & J Signs, Inc., revenue to the City in the amount of \$3,000.00).

[CA] Consideration of Bid #R-32-11 for the surplus sale of approximately 600 95-gallon damaged plastic refuse containers for the Sanitation Division -- referred to Finance Committee.

[CA] Consideration of Bid #M-21-11 for a contract between the City of Cheyenne and Aztec Construction Company, Inc., Cheyenne, Wyoming, for the Snyder Avenue Stormwater Pipeline Project (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #M-23-11 for a contract between the City of Cheyenne and Streamline Markings, Inc., Billings, Montana, for the railroad crossing pavement marking upgrades for various City streets (federal funds) -- referred to Finance Committee.

[CA] Consideration of Bid #M-24-11 for a contract between the City of Cheyenne and Great Western Park and Playground, Wellsville, Utah, for the David R. Romero Community Park Playground Surfacing Renovation Project (Community Facilities fees-Park Infrastructure) -- referred to Finance Committee.

Re-appointments of Jo Butler, Carol Matteson Pascal, Bebe Molway, Robert Kanard, Abby Yenco and Chuck Otto to the Greenway Advisory Committee. Dr. Rinne moved to approve, seconded by Mr. Collins. Motion carried. Voting "yes" -- all members of the governing body present with the exception of Mayor Kaysen who did not vote (Mayoral appointments).

Announcement was made of a Public Hearing to be held July 11, 2011 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, for applications for two available retail liquor licenses filed with the City Clerk's Office by One East Sixteenth, LLC d/b/a TBD, 1601 Central Avenue; Cheyenne Depot Museum, Inc. d/b/a Cheyenne Depot Museum, 121 West 15th Street; Syvn, Inc. d/b/a TBD, 218 West 17th Street; MTM, Inc. d/b/a The Cowboy Grill, (address not yet issued) to be located off Powderhouse Road between Spirit Lane and Gardenia Drive in The Pointe Plaza, and Let'er Buck Investment Group, LLC d/b/a Steamboat's, (address not yet issued) to be located off Gardenia Drive between Yellowstone Road and El Camino Real in Cathedral Commons.

Announcement was made that due to the July 4th Holiday, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, Room 122, 2101 O'Neil Avenue, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, July 5, 2011 at 11:00 a.m. and Public Services Committee will meet Wednesday, July 6, 2011 at Noon.

Announcement was made of the Re-appointments of Phil Griggs, James Dittman, Mary Aragon, and Ami Skeens to the Public Transit Advisory Board to be confirmed July 11, 2011.

Under other business, announcement was made of the 2012 Cheyenne Neighborhood Night Out event, coordinated by the Cheyenne Police Department, which will be held Tuesday, July 12 and that persons interested in being block captains for the activity in their neighborhood should contact the Police Department for information.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 7:49 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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